



CHAPTER cxx.

An Act to empower the Corporation of London to A.D. 1911.
construct a new bridge over the River Thames between
Blackfriars and Southwark bridges to rebuild South-
wark Bridge and to confer other powers upon them
with respect to those and other bridges and for other
purposes. [18th August 1911.]

WHEREAS the construction of a bridge over the River Thames
between Blackfriars and Southwark bridges together with
approaches to the said bridge on either side of the said river and
other works would be attended with local and public advantage :

And whereas it is expedient that the bridge across the River
Thames known as the Southwark Bridge should be pulled down
and rebuilt :

And whereas the mayor and commonalty and citizens of the
city of London are seised of or entitled to certain messuages
lands tenements and hereditaments in the city of London and
in the counties of London Surrey Kent and Essex (which are
commonly called and are in this Act referred to as "the Bridge
House Estates") in trust for the maintenance and support of
London Bridge Blackfriars Bridge Southwark Bridge and the
Tower Bridge :

And whereas it is expedient that power should be conferred
on the Corporation to construct the said bridges and approaches
and to execute the works necessary for or incidental thereto
respectively and that for the purpose of defraying the cost
of construction and maintenance the Corporation should be
empowered to raise the necessary moneys on the credit of the said
Bridge House Estates and of their estates and revenue :

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And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the respective clerks of the peace for the city of London and the county of London and are in this Act referred to as the deposited plans and sections and book of reference :

And whereas it is expedient that provision should be made as herein-after contained with reference to the jurisdiction of the justices of the peace of the city of London and police jurisdiction in respect of the said bridges and that the other powers contained in this Act should be conferred :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited for all purposes as the Corporation of London (Bridges) Act 1911.

Interpretation.

2. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with or applied to the purposes of this Act have the same respective meanings And—

“The new bridges” means the bridges by this Act authorised to be constructed ;

“The works by this Act authorised” means the new bridges the approaches thereto the widening subway and diversion and the works in connexion therewith respectively by this Act authorised ;

“The Corporation” means the mayor and commonalty and citizens of the city of London trustees of the Bridge House Estates ;

“The city” means the city of London and the liberties thereof ;

“The council” means the London County Council;

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“The port authority” means the Port of London Authority:

In any enactment incorporated with this Act for the purposes of this Act and in this Act the expression “justice” shall be construed to mean with respect to the city the lord mayor or any alderman or the recorder of the city and elsewhere any police or stipendiary magistrate acting in and for the district in which the matter referred to him arises.

3. This Act shall be carried into execution by the Corporation acting by the mayor aldermen and commons of the city of London in common council assembled.

Corporation
to execute
Act by com-
mon council.

4. The provisions of the Lands Clauses Acts (except sections 127 to 131 of the Lands Clauses Consolidation Act 1845) shall except so far as the same are expressly varied by or are inconsistent with the provisions of this Act be incorporated with and form part of this Act and for the purpose of such incorporation the term “the promoters of the undertaking” in the said Act shall be construed to mean the Corporation.

Incorporation of Lands
Clauses
Acts.

5. The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof shall be and the same are hereby incorporated with and form part of this Act and for the purposes of such incorporation the term “the railway” in the said provisions shall be construed to mean the new bridges and the approaches thereto and the expression “the centre of the railway” shall be construed to mean for such purposes any part of the new bridges and of the said approaches.

Provisions
of Railways
Clauses Con-
solidation
Act 1845 as
to temporary
occupation
of lands in-
corporated.

6. The Corporation may subject to the provisions of this Act and in the line and according to the levels shown on the deposited plans and sections construct the works following (that is to say) :—

Power to
execute
works.

Work No. 1 A new bridge and approaches for vehicular and pedestrian traffic across the River Thames commencing at or near the junction of Southwark Street and Great Guildford Street Southwark and terminating on the south side of Cannon Street in the city of London at a point fifteen yards or thereabouts measured in a westerly direction from the centre of Old Change:

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Work No. 2 A widening of St. Paul's Churchyard on the eastern side thereof between Cannon Street and Cheapside :

Work No. 3 A subway for foot passengers commencing in Knightrider Street at a point forty-two yards or thereabouts west of Distaff Lane and terminating in Knightrider Street at a point thirty-two yards or thereabouts east of Knightrider Court :

Work No. 4 A diversion of Old Change Hill commencing in Queen Victoria Street adjoining Old Change Hill and terminating in Knightrider Street at a point twenty-nine yards or thereabouts east of Knightrider Court :

Work No. 5 A new bridge and approaches for vehicular and pedestrian traffic across the River Thames in substitution for the existing bridge known as Southwark Bridge commencing at a point in Southwark Bridge Road fifty yards or thereabouts north of Sumner Street Southwark and terminating in Queen Street Place in the city of London at or near the junction therewith of Upper Thames Street.

As to diversion of Old Change Hill.

7. Notwithstanding anything contained in this Act or shown on the deposited plans the Corporation shall not construct the diversion of Old Change Hill by this Act authorised of a less width than twenty-four feet of which at least sixteen feet shall be carriageway.

Alterations of streets &c.

8. For the purposes of or in connexion with the construction of the new bridges and the works by this Act authorised the Corporation may subject to the provisions of this Act and in the manner shown on the deposited plans and sections alter both as regards lines and levels stop up break up divert raise lower or widen the streets and roads herein-after mentioned and may make new and alter existing junctions therewith and may divert alter and remove all such tramways sewers steps boundary walls railings windows pavement lights gratings areas drains tubes wires mains and pipes as may be necessary for the purposes of this Act making all reasonable compensation to any person who suffers damage whether temporary or permanent to his property by reason of the exercise of any such powers the amount of such compensation failing agreement to be referred to arbitration under the Arbitration Act 1889 Provided that the arbitrator shall in assessing the amount take into consideration

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the benefit (if any) accruing to such person by reason of the construction of the works by this Act authorised The following are the streets and roads hereinbefore referred to:—

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In the city of London—

St. Paul's Churchyard Old Change Old Change Hill
 Carter Lane Knightrider Street Lambeth Hill Brooks
 Yard Queen Victoria Street Cannon Street Upper
 Thames Street Trig Lane Castle Yard George Yard
 Queen Street Place and Knightrider Court:

In the metropolitan borough of Southwark—

Bankside Pike Gardens Wagstaff Buildings Martagon
 Place Moss Alley Zoar Street Noah's Ark Alley White
 Hind Alley Taylor's Yard Sumner Street Park Street
 Great Guildford Street The Grove Southwark Street
 Southwark Bridge Road Princes Buildings Skin Market
 Place Cardinal Cap Alley Corliss Place and Ladd's
 Court:

And the Corporation may subject to the provisions of this Act and in the manner shown on the deposited plans and sections alter the levels of the existing tramways of the council in Southwark Street between Lavington Street and a point thirty yards or thereabouts east of the entrance to Peabody Buildings.

On the stopping up of any street or road or portion thereof under this section all rights of way thereover shall be extinguished and the site and soil thereof shall vest in the Corporation but the Corporation shall not stop up any street or road or portion thereof or appropriate the site and soil thereof unless they are owners in possession of all houses and lands on both sides of the street or road or portion to be stopped up except so far as the owners lessees and occupiers of such houses and lands may otherwise agree Provided that the Corporation shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

9. Subject to the provisions of this Act the Corporation may erect and maintain temporarily during the construction of the new bridge Work No. 5 by this Act authorised a footbridge

Subsidiary
 works affect-
 ing River
 Thames.

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A.D. 1911. or footbridges over the River Thames on either or both sides of Southwark Bridge and may make on or in the banks bed soil and foreshore of the said river and elsewhere in connexion with the works by this Act authorised and at or near any works or erections to be made or put up by the Corporation for or connected with the construction of the works by this Act authorised or the temporary footbridge or footbridges aforesaid and may place and keep in the said river all such temporary and permanent piles fenders booms dolphins pontoons caissons stagings cofferdams embankments piers abutments wharves walls fences drains stairs subways buildings and all such other works and conveniences as they may deem proper or find necessary or expedient and may with the consent of the port authority close temporarily any arch or arches of Southwark Bridge but for such period or periods only in each case as shall be requisite for the execution of the works by this Act authorised.

Power to deviate.

10. Subject to the provisions of this Act the Corporation may in making the works by this Act authorised deviate to an extent not exceeding three feet downwards and five feet upwards from the levels defined on the deposited sections and may deviate laterally from the line of any of the works by this Act authorised to any extent within the limits of deviation defined on the deposited plans.

Corporation empowered or may be required to underpin or otherwise strengthen houses near works.

11. And whereas in order to avoid in the execution and maintenance of any works by this Act authorised injury to the houses and buildings within one hundred feet of the works by this Act authorised it may be necessary to underpin or otherwise strengthen the same Therefore the Corporation at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as herein-after provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):—

(1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened :

(2) Each such notice if given by the Corporation shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given

by the owners or lessees of the premises to be under-
pinned or strengthened shall be sent to the town
clerk of the city: A.D. 1911.

- (3) If any owner lessee or occupier of any such house or building or the Corporation as the case may require shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Board of Trade and the Arbitration Act 1889 shall apply to the reference:
- (4) The arbitrator shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Corporation may and shall proceed forthwith so to underpin or strengthen the said house or building:
- (5) The Corporation shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment:
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Corporation such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the Corporation then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Corporation shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made

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by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof:

(7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Corporation from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act:

(8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts:

(9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

Power to
take lands.

12. Subject to the provisions of this Act the Corporation may enter upon take and use all or any of the lands shown on the deposited plans and described in the deposited book of reference which they may require for the purposes of this Act and for the purposes of recoupment or exchange and of providing space for the erection of buildings adjoining or near to the works by this Act authorised and of providing accommodation for persons belonging to the working class who may be displaced in executing the powers of this Act but the Corporation shall not create or permit a nuisance on any such lands.

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

13. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are herein-after included in the term “the owner” and the said properties are herein-after referred to as “the scheduled properties”:

- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise: A.D. 1911.
- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be

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severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :

(6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :

(7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Benefit of
improvement
to be taken
into con-
sideration
in fixing

14. In estimating the amount of purchase money and compensation to be paid by the Corporation in respect of lands acquired for the purposes of or in connexion with the works by this Act authorised the benefits accruing to any other property

A.D. 1911.

of the person to whom the same shall be paid by reason of the construction of the said works shall be fairly estimated and shall be set off against the said purchase money and compensation.

compensation for lands required for new works.

15. In settling any question of disputed purchase money or compensation under this Act the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the fourth day of November one thousand nine hundred and nine if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation in cases of recently altered buildings.

16. The court or person to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Corporation have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be paid by the claimant:

Costs of arbitration &c. in certain cases.

Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Corporation to amend the statement in writing of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Corporation if they object to the amendment and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case:

Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses

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A.D. 1911. Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Persons
under dis-
ability may
grant ease-
ments &c.

17. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may (if they think fit) subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Correction of
errors &c. in
deposited
plans and
book of
reference.

18. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the city or for the county of London as the case may be for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the city or the clerk of the peace for the county of London as the case may require and shall be kept by such clerk of the peace with the other documents to which it relates and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Power to
Corporation
to enter upon
property for
survey and
valuation.

19. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk of the city may at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards twelve hours' previous notice enter upon and into the lands and buildings by this Act authorised to be taken and used as aforesaid or any of them for the purpose of

surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings. A.D. 1911.

20. The Corporation for the purposes of the powers granted to them by this Act and during the construction of the works by this Act authorised may in or upon the lands shown in connexion therewith upon the deposited plans stop up interfere with alter or divert temporarily all or any part of any road street bridge stairs way stream or watercourse which they shall think necessary for such purposes to be stopped up and may put or cause to be put up sufficient palisades hoardings bars posts and other erections and may construct temporary works for keeping any such road street bridge stairs or way open for traffic and may make such orders for regulating the traffic as to them shall seem proper Provided that the Corporation shall afford reasonable access to all persons bonâ fide going to or returning from any house in any such road or street.

Power to temporarily stop up or interfere with roads &c. for purposes of new bridges &c.

21. In addition to any other powers contained in this Act the Corporation may subject to the provisions of this Act and within the limits of deviation defined on the deposited plans cross stop up interfere with alter or divert either temporarily or permanently and may make junctions with all roads streets courts stairs passages highways bridges and footpaths ways and rights of way rivers navigations streams and watercourses which it may be necessary to cross stop up interfere with alter or divert for the purposes of the new bridge and works or for other purposes of this Act In the exercise of the powers conferred by this section the Corporation shall cause as little detriment and inconvenience as circumstances admit to any company or person and shall make reasonable compensation for any damage caused to any company or person by the exercise of the powers aforesaid.

Power to make subsidiary works.

22. The Corporation may for any purpose in connexion with the works by this Act authorised within the limits of deviation defined on the deposited plans raise sink or otherwise alter the position of any watercourse waterpipe or gaspipe belonging to or connected with any house or building and also any main pipe or apparatus laid down or used by any company body or person for carrying a supply of water or water for

Alteration of position of water gas and other pipes.

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A.D. 1911. hydraulic power or gas and also any pipe tube wire or apparatus laid down or placed for telegraphic or other purposes or for supplying electricity (all of which mains pipes tubes wires and apparatus are in this section included in the expression "apparatus") and may remove any other obstruction making proper substituted works during any alteration and causing as little detriment and inconvenience as circumstances admit to any company body or person and making reasonable compensation to any company body or person for any damage caused by any such alteration. Provided always that before the Corporation alter the position of any apparatus laid down or used by any such company body or person they shall (except in cases of emergency) give to the company body or person to whom the same belongs notice of their intention to do so specifying the time at which they will begin to do so such notice to be given seven days at least before the commencement of the work for effecting such alteration and such work shall be done under the superintendence (at the expense of the Corporation) of the company body or person to whom such apparatus belongs unless such company body or person refuses or neglects to give such superintendence at the time specified in the notice for the commencement of such work or discontinues the same during the execution of such work and the Corporation shall execute such work to the reasonable satisfaction of the engineer of such company body or person but if within seven days of the receipt of such notice any such company body or person shall give notice to the Corporation of their desire themselves to execute such work they shall forthwith proceed to do so and the cost reasonably incurred by them in so doing shall be repaid to them by the Corporation. Provided also that the Corporation shall not cause any street or road to be lowered or raised nor the position of any apparatus to be altered so as to leave over such apparatus in any part a covering of less than two feet where the covering now existing is not less than two feet unless the Corporation shall in such case protect such apparatus from frost or injury by artificial covering to the satisfaction of the engineer of such company body or person or more than six feet where the covering now existing does not exceed six feet or more than such existing covering where the same exceeds six feet unless the Corporation in such case provide special means of access to such apparatus to the satisfaction of the engineer of such company body or person.

Notwithstanding the stopping up temporarily of any street or road in which any apparatus of any such company body or person shall be laid the said company body or person their engineers workmen and others in their employ shall at all times have full free and uninterrupted rights of access to all or any of such apparatus and shall be at liberty to do all such works in and upon any such street or road as aforesaid as may be necessary for inspecting repairing maintaining removing replacing or extending such apparatus. A.D. 1911.

If any difference arise between the Corporation or their engineer and any such company body or person or their or his engineer touching the amount of any compensation costs expenses or charges under the provisions of this Act to be paid by the Corporation to any such company body or person or touching any work matter or thing with reference to such apparatus under such provisions to be done or executed by the Corporation or the mode of doing or executing the same such difference shall unless otherwise agreed be settled by an engineer to be agreed upon by the engineer of the Corporation and any such company body or person respectively or failing agreement by such engineer as shall on the application of the engineer either of the Corporation or of any such company body or person be named by the President of the Institution of Civil Engineers.

Provided that nothing in this section shall extend to prejudice or affect any of the provisions for the protection of any undertakers authorised to supply electrical energy contained in any special Act or any Provisional Order confirmed by Act of Parliament.

23. Notwithstanding anything in any Act to the contrary it shall not except as by this Act expressly provided be lawful for any person to enter upon break up or interfere with the new bridges or the carriageways and footways over the same respectively for the purpose of laying down any main or pipe or executing any work therein thereon or thereunder except with the consent of the Corporation in writing and in accordance with such terms and conditions either as to the payment of any rent or other valuable consideration or otherwise as the Corporation may reasonably determine Provided that nothing in this section contained shall alter prejudice or affect any of the rights powers and authorities of the Postmaster-General under the provisions of the Telegraph Acts 1863 to 1909. No mains or pipes to be laid on new bridges except with consent of Corporation.

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Corporation
empowered
to lay out
carriage-
ways and
footways.

24. Subject to the provisions of this Act the Corporation may cause such parts of the works by this Act authorised to be laid out for carriageway and such parts thereof for footway as they may think proper and may upon the lands acquired by or vested in them respectively under the powers of this Act and within the limits of deviation defined on the deposited plans construct erect and provide such vaults cellars arches sewers drains subways and other works and conveniences as they may think proper for the purposes of the works by this Act authorised and in laying out or forming such carriageway and footway and works the Corporation may in addition to the powers by this Act conferred exercise the same powers and authorities as are vested in and shall be subject to the same liabilities only in respect thereof as are imposed upon any metropolitan borough council when they stop up temporarily any road thoroughfare or any part thereof in the repairing or repaving of any street.

Sewers or
drains to be
removed
arched over
or filled up.

25. The Corporation may cause to be removed arched over or filled up all such sewers or drains or parts thereof which shall be in or near the streets or roads to be interfered with for the purposes of this Act as shall appear necessary for executing the purposes of this Act so as that no sewer or drain (unless the same shall have become unnecessary) shall be in any wise disturbed injured or prejudiced without another sewer or drain being made in lieu thereof equally serviceable and convenient Provided always that before removing or filling up any sewer or drain or part thereof as aforesaid the Corporation shall where necessary cause to be made and built other good and sufficient sewers and drains in substitution for the sewers or drains which shall be filled up and when made and completed the said sewers and drains shall be under the same jurisdiction care management and direction as the existing sewers or drains for which they are substituted.

Power to
alter and
pull down
buildings.

26. Subject to the provisions of this Act and within the limits of deviation defined on the deposited plans the Corporation may for the purposes of and in connexion with the powers granted to them by this Act alter and pull down any houses buildings and erections shown upon the said plans making all reasonable compensation to any person who suffers damage by any such alteration.

27. Subject to the provisions of this Act the Corporation and the council the port authority local and road authorities owners of property or other persons interested in lands houses or property abutting on any portion of the works by this Act authorised may enter into and carry into effect agreements with respect to the construction maintenance and use of the works by this Act authorised and the sale or purchase by the Corporation of any lands or property for such consideration being a sum of money in gross or a grant of land or partly money and partly land as may be agreed upon between the Corporation and the council the port authority local and road authorities owners or other persons.

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 Power to Corporation to make agreements with council port authority and others.

28. For the protection of the dean and chapter of the cathedral church of St. Paul in London (in this section respectively referred to as "the dean and chapter" and "the cathedral") the following provisions shall unless otherwise agreed in writing between the dean and chapter and the Corporation have effect (that is to say):—

For protection of dean and chapter of St. Paul's Cathedral.

- (1) In constructing any of the Works Nos. 1 2 3 and 4 by this Act authorised or any subsidiary or other works in connexion therewith respectively northward of the northern bank of the River Thames the Corporation shall not pump or permit any flow of water from the site of such works except when and where absolutely necessary and northward of Queen Victoria Street only with the consent of the engineer of the dean and chapter which consent shall not be unreasonably withheld:
- (2) Not less than one month before commencing to construct any of the works by this Act authorised between Queen Victoria Street on the south and Cheapside on the north the Corporation shall submit to the dean and chapter plans sections detailed working drawings and specifications of such works and shall also furnish them with full information as to the said works and the proposed mode of construction thereof:
- (3) If it should appear to the dean and chapter that the construction of the said works as proposed would endanger the cathedral the dean and chapter may at

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any time within one month from the date of such submission signify to the Corporation their disapproval of the said plans sections working drawings and specifications or any of them or require the Corporation to make any such variations of or alterations in the said works as they may reasonably think necessary in order to secure the cathedral against any risk of damage or injury or to execute any such additional or other works as they may reasonably think necessary for preventing any such damage or injury :

- (4) The Corporation shall not be at liberty without the consent in writing of the dean and chapter to commence the construction of the said works before the expiration of the said period of one month but if the dean and chapter shall not within that period have signified their disapproval of such plans sections working drawings and specifications or any of them or have made any requirement with respect thereto or to the construction of such protective works as aforesaid the Corporation may at any time after the expiration of the said period construct the said works in all respects in accordance with the said plans sections working drawings and specifications as submitted to the dean and chapter :
- (5) If the dean and chapter shall have duly signified such disapproval or made any such requirement as aforesaid the Corporation shall not commence the construction of the said works unless or until the matter in difference shall have been determined in manner herein-after provided and then only in accordance with such plans sections working drawings and specifications as shall be in like manner determined :
- (6) The Corporation shall permit the dean and chapter or their authorised agent or engineer to have access to the said works during construction and shall give to them or him all necessary facilities for inspecting the same and for enabling them or him to judge whether they are being or are proposed to be carried out in accordance with the provisions of this section :
- (7) The Corporation shall bear and on demand pay to the dean and chapter all reasonable costs of the inspection of

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the said plans sections working drawings and specifications and of the superintendence by the dean and chapter of the construction of the said works and all reasonable costs in connexion with the protection of the cathedral on account of the construction of the said works but such superintendence by the dean and chapter or their authorised agent or engineer shall not relieve the Corporation from liability for any accident or damage which may be occasioned by or through the operations of the Corporation or of their contractors agents or workmen : A.D. 1911.

- (8) Any difference which shall arise under this section shall be determined by an arbitrator to be agreed upon between the dean and chapter and the Corporation or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

29. For the protection of the Metropolitan District Railway Company (herein-after called "the district company") the following provisions shall unless otherwise agreed between the Corporation and the district company be observed and have effect (that is to say) :—

For protection of Metropolitan District Railway Company.

- (1) The Corporation shall not without the previous consent in writing of the district company enter upon take or use either temporarily or permanently any part of the railways and works or other property of the district company held in connexion therewith (herein-after called "the district railway") or without the like consent alter vary or in any way interfere with the district railway or any of the works connected therewith but the Corporation may purchase and the district company shall sell such easement in or under any property of the district company (other than their railways or stations) as may be reasonably necessary to enable the Corporation to carry out the works by this Act authorised :

- (2) Before the Corporation in the exercise of the powers of this Act commence the construction of any works or any alterations or repairs thereof (all of which are in

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this section referred to as "works") within thirty yards of the district railway they shall give to the district company one month's notice in writing of their intention so to do accompanied by full and detailed plans sections and specifications of the works so to be executed and the proposed mode of executing the same and no such work shall be commenced until such plans sections and specifications shall have been approved of by the district company or by an arbitrator to be appointed as herein-after provided Provided that if the district company do not within twenty-one days after receiving such notice as aforesaid signify to the Corporation their approval of such plans sections and specifications a difference shall be deemed to have arisen between them :

- (3) Prior to commencing any part of the works situate within thirty yards of the district railway the Corporation at their own cost shall make trial borings on the site of the proposed works within thirty yards of the district railway for the purpose of ascertaining the nature of the soil in which the works are to be constructed and a record of the substrata as ascertained by such borings shall be supplied to the district company for the information of their engineer :
- (4) The Corporation shall execute such protective works and take such other precautions as the engineer of the district company shall deem necessary for ensuring the safety of the district railway and the works when commenced shall be proceeded with without cessation and any difference as to the requirements of the engineer of the district company or the mode of executing the works in pursuance thereof shall be referred from time to time to arbitration as herein-after provided :
- (5) On no account and under no pretext whatsoever shall the soil under the district railway or any part thereof or any of the foundations or any of the structure of the same be disturbed either during the construction of the works or for the purpose of any repairs thereto nor shall any of the soil beneath the district railway nor any of the foundations thereof be taken away or

disturbed either during the construction of the works or at any time after completion for any purpose whatever without the previous consent in writing of the district company : A.D. 1911.

- (6) The district company shall be entitled at the expense of the Corporation to supervise the mode in which the works described in the plans submitted by the Corporation are carried out and for this purpose to appoint such engineers clerks of the works inspectors and watchmen as may be reasonably necessary for the purpose :
- (7) The Corporation shall at all times maintain their works over or within thirty yards of the district railway and the works and conveniences connected therewith in substantial repair and good order and condition to the reasonable satisfaction in all respects of the engineer of the district company and if and whenever the Corporation fail so to do the district company may make and do in and upon as well the lands of the Corporation as their own lands all such works and things as the district company may reasonably think requisite and the sum from time to time certified by such engineer to be the reasonable amount of their expenditure in that behalf shall be repaid to the district company by the Corporation The engineer of the district company and those authorised by him shall at all times have free access to the works and every facility shall be afforded him and them for the inspection thereof and every reasonable notice which he or they may give touching any defect or want of repair shall immediately or as soon as possible be complied with by the Corporation :
- (8) If in consequence of the construction of the works or the exercise of the powers by this Act authorised any extra cost be occasioned to the district company in repairing or maintaining the district railway the Corporation shall from time to time repay such extra cost to the district company :
- (9) If during the construction of the works the district railway or any of the works or conveniences connected

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therewith shall be injured or damaged such injury or damage shall be forthwith made good by the Corporation at their own expense or in the event of their failing so to do the district company may make good the same and recover the costs thereof against the Corporation.:

- (10) The Corporation shall not in making and maintaining or using the works by this Act authorised in any manner obstruct hinder or interfere with the free uninterrupted and safe user of the district railway or any traffic thereon or affect the efficiency of any electrical cables or other electrical apparatus on the district railway and if at any time or times hereafter the free uninterrupted and safe user of the district railway or any traffic thereon shall be obstructed hindered or interfered with or the efficiency of any electrical cables or other electrical apparatus on the district railway be affected contrary to this enactment the Corporation shall pay to the district company full compensation in respect thereof:
- (11) During the construction of the works by this Act authorised within thirty yards of the district railway the Corporation shall bear and on demand shall pay to the district company the expense of the employment by the district company of a sufficient number of inspectors or watchmen to be appointed by them for watching the district railway and the works and conveniences connected therewith with reference to and during the execution of the works and for preventing as far as may be any interference obstruction danger and accident likely to arise from any of the operations of the Corporation or from the acts or defaults of their contractors or of any person or persons in their employ or otherwise:
- (12) Notwithstanding anything in this Act contained the Corporation shall be responsible for and make good to the district company all costs losses damages and expenses which may be occasioned to the district railway or to any of the works lands or other property thereof or to the traffic thereon or to any person or persons using the same or to any servant of the

district company or otherwise by reason of the construction or failure of the works by this Act authorised and the works in connexion therewith or of any act or omission of the Corporation or any of the persons in their employ or of their contractors or others and the Corporation shall effectually indemnify and hold harmless the district company from all lawful claims and demands upon or against them by reason of such execution or failure or of any such omission. Provided that nothing in this subsection shall render the Corporation liable to make compensation by reason of competition :

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 —

- (13) All reasonable fees costs charges and expenses in respect of any of the matters in this section contained (other than matters which become the subject of arbitration under the provision herein-after contained and which shall be dealt with as the arbitrator shall direct) shall be borne and paid by the Corporation :
- (14) Any difference which may arise under the provisions of this section between the district company and the Corporation shall be from time to time referred to and determined by an engineer to be agreed upon or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers :
- (15) The fact that any work or thing has been done or executed in accordance with any plan not objected to or approved by the district company or with any requirement of the district company or under the superintendence of the district company's engineer or in accordance with any direction or award of an arbitrator shall not excuse the Corporation from any liability for damage caused to the district railway works and buildings or affect any claim by the district company for injury caused to the district railway works and buildings.

30. The following provisions for the protection of the Company of Armourers and Brasiers in the city of London (in this section called "the company") and Miles Druce and Company and Beck and Pollitzer the tenants or reputed tenants

For protection of
 Armourers
 and Brasiers
 Company
 and their
 tenants.

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A.D. 1911. of the company (all of whom are in this section called "the owners") shall unless otherwise agreed in writing apply and have effect:—

- (1) Notwithstanding anything in this Act contained or shown upon the deposited plans the Corporation shall not without the consent of the company enter upon take use or interfere with the property numbered 208 209 and 210 on the deposited plans in the parish of the city of London belonging or reputed to belong to the company (herein-after referred to as "the said property") unless part thereof shall be actually required for the construction of Work No. 1 by this Act authorised. If part of the said property shall be so required and the company shall be willing to sell such part alone and shall not require the Corporation to purchase the whole of the said property the Corporation shall be entitled to take and purchase such part only as shall be actually required for the construction of the said Work No. 1:
- (2) The Corporation shall not construct place or execute any works either temporary or permanent in on or over the River Thames which shall interfere with or impede the free access from the River Thames to and from the wharf of the company known as Trig Wharf and shall not by any work or the mooring or anchoring of any vessel used in connexion with any work interfere with the free access to the said wharf:
- (3) Before commencing any work within one hundred feet of the said property the Corporation shall give to the company not less than twenty-one days' notice in writing of their intention so to do together with all reasonable and necessary information as to such works and the mode of constructing the same:
- (4) Any works to be constructed by the Corporation which may affect the said property shall be constructed at the cost of the Corporation only in accordance with plans sections and specifications previously submitted to and approved in writing by an engineer to be appointed by the company and which approval shall not be unreasonably withheld:

(5) The engineer appointed by the company may from time to time inspect the works within one hundred feet in any direction of the said property during construction and the Corporation shall give such engineer all necessary facilities for such inspection: A.D. 1911.

(6) If the Corporation shall underpin or strengthen any part of the said property the work shall be carried out by the Corporation at the risk and expense of the Corporation to the approval of the surveyor to the company which approval shall not be unreasonably withheld:

(7) If on completion of Work No. 1 by this Act authorised there shall be any land situate between Work No. 1 and the said property not used for the construction of such work the Corporation may by agreement sell to the company and the company may purchase such land and the site of Trig Lane and the company if they purchase may hold the same and may erect buildings thereon having a frontage on to and access to Work No. 1 but the front elevation of such buildings shall be of an ornamental character and in accordance with plans to be subject to the reasonable approval of the Corporation:

(8) If any difference shall arise between the Corporation and the owners or any of them under the provisions of subsections (3) (4) (5) and (6) of this section the same shall from time to time as the case requires be referred in accordance with the provisions of the Arbitration Act 1889 to an engineer to be agreed upon between the parties or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of any party and the decision of such engineer shall be final.

31. The following provision shall unless otherwise agreed between the Corporation and the Company of Dyers apply and have effect (that is to say):—

The Corporation may purchase and the Company of Dyers if requested so to do by the Corporation may and shall sell the premises known as Paul's Wharf No. 28 Upper Thames Street and lying to the west of and immediately

As to purchase of
 No. 28
 Upper
 Thames
 Street.

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adjoining the property numbered on the deposited plans 208 in the city of London and the Corporation may sell to the Company of Armourers and Brasiers in the city of London and the said company may purchase and hold so much of such premises as the Corporation may not desire to retain.

For protection of Lever Brothers Limited.

32. Notwithstanding anything contained in this Act the following provisions for the protection of Lever Brothers Limited (in this section called "the company") shall unless otherwise agreed in writing apply and be binding and obligatory upon the Corporation viz. :—

- (1) In the event of the Corporation requiring to purchase for the purposes of the bridge and works authorised by this Act the lands and property of the company known as Sunlight Wharf Upper Thames Street in the city of London the provisions of the section of this Act whereof the marginal note is "Compensation in case of recently altered buildings" shall not apply to such lands and property. The sum or sums of money to be paid to the company by the Corporation in respect of the purchase of such lands and property shall in default of agreement be determined in accordance with the provisions (as varied by this Act) of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement :
- (2) The Corporation shall within six months from the date of the passing of this Act serve upon the company a notice to treat for the acquisition of all the company's rights and interests in the said lands and property :
- (3) The company shall not be required to give possession of their existing premises to the Corporation other than so much thereof as may be reasonably necessary to enable the Corporation to construct the works by this Act authorised until the expiration of three years from the date of the service of the notice to treat.

For protection of General Booth.

33. For the protection of William Booth General of the Salvation Army (in this section referred to as "the owner")

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the following provisions shall unless otherwise agreed between the owner and the Corporation apply and have effect (that is to say):— A.D. 1911.

(1) Notwithstanding anything contained in this Act or shown upon the deposited plans and sections the Corporation shall not deviate the centre line of the bridge so as to interfere with nor shall the Corporation purchase or acquire the interest of the owner in the properties numbered on the deposited plans 229 231 232 and 233 in the city of London:

(2) The Corporation shall afford to the owner the right of pre-emption over so much of the property numbered on the deposited plans 234 in the city of London as may not be required for the works by this Act authorised and if the said right of pre-emption is exercised the owner shall be entitled if possible to provide an entrance to the said property from the approach to the said bridge.

34. For the protection of Alfred Philip King and Thomson Brothers Limited or other the lessees of the property numbered on the deposited plans 276 in the parish of the city of London the said property shall not be deemed to be within the limits of deviation shown upon the deposited plans.

For protection of Alfred Philip King and Thomson Brothers Limited.

35. For the protection of Messieurs Cook Son and Company and of Sir Frederick Lucas Cook and the trustees of the will of Wyndham Francis Cook the following provisions shall unless otherwise agreed apply and have effect:—

For protection of Cook Son and Company and others.

The Corporation may enter upon take and use the properties numbered on the deposited plans 284 285 286 and 286A in the parish of the city of London but nothing in this Act contained shall authorise the Corporation to enter upon take or use any portion of the properties numbered on the said plans 287 288 and 289 in the said parish.

36. For the protection of Higgins Eagle and Company Limited or other the owner for the time being of the property numbered 26 Old Change (herein-after called "the owner") the following provisions shall unless otherwise agreed between the Corporation and the owner apply and have effect:—

For protection of Higgins Eagle and Company Limited.

(1) Notwithstanding anything in this Act contained it shall not be lawful for the Corporation (otherwise than

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by agreement) to permanently enter upon take or use any part of the property numbered on the deposited plans 299 in the parish of the city of London other than so much of the frontage thereof to Old Change as lies within a distance of fifteen feet from the eastern frontage line of bridge approach as shown on the deposited plans and the Corporation shall afford to the owner the option of taking a lease for the period of the owner's lease of the said property existing at the date at which such option is afforded of an area adjoining the said property approximately equal to the area thereof permanently acquired by the Corporation upon such terms as may be agreed or settled by arbitration as herein-after provided and a renewal of the now existing lease of the said property for such or any less period as the same has on previous occasions been renewed shall be regarded for the purposes of the section of this Act the marginal note whereof is "Compensation in case of recently altered buildings" as having been reasonably necessary and not made or created with a view to obtaining or increasing compensation under this Act:

- (2) The Corporation may for the purpose of constructing the works by this Act authorised and of reinstating the buildings on the said property temporarily enter upon and use such further portion thereof as may be absolutely necessary for those purposes but the Corporation shall after the first interference with the said property proceed with and complete with all reasonable despatch the works affecting the same:
- (3) All works to be carried out by the Corporation upon the portion of the property referred to in the last preceding subsection shall be carried out in accordance with plans and sections to be reasonably approved by the owner and if any difference shall arise between the Corporation and the owner the same shall be referred to and determined by an arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration:

- (4) The Corporation shall not at any time under the powers of this Act in any way interfere with or obstruct the existing accesses to or from the said property from or to Cannon Street and Distaff Lane and shall at all times during the construction of the works preserve access for vehicular traffic to the said properties: A.D. 1911.
- (5) Nothing herein contained shall be construed to enact or imply that the said or any part of the said property can be severed from the remainder of it without material detriment thereto.

37. For the protection of Alexander Augustus Berens the freeholder or reputed freeholder of the premises known as Nos. 2 and 2A Cannon Street and of part of the premises known as Nos. 4 and 6 Cannon Street and the leaseholder or reputed leaseholder of other part of the two lastly mentioned premises and of A. Stedall Limited the lessees or reputed lessees of No. 2 Cannon Street and of the freeholders or leaseholders for the time being of the same premises and parts thereof respectively the following provisions shall unless otherwise agreed apply and have effect (that is to say):—

For protection of A. A. Berens and A. Stedall Limited.

- (1) Notwithstanding anything in this Act contained it shall not be lawful for the Corporation otherwise than by agreement to enter upon take or use any part of the property of Alexander Augustus Berens which is comprised in the area numbered on the deposited plans 299 in the parish of the city of London:
- (2) Notwithstanding anything in this Act contained it shall not be lawful for the Corporation (otherwise than by agreement) to permanently enter upon take or use any part of the properties numbered on the deposited plans 300 and 301 in the parish of the city of London other than so much of the frontage thereof to Old Change as lies within a distance of fifteen feet from the eastern frontage line of bridge approach as shown on the deposited plans:
- (3) The Corporation may for the purpose of constructing the works by this Act authorised and of reinstating the buildings on the said properties temporarily enter upon and use such further portion of the said properties

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as may be absolutely necessary for those purposes but the Corporation shall after the first interference with the said properties proceed with and complete with all reasonable despatch the works affecting the same :

- (4) All works to be carried out by the Corporation upon the portion of the property referred to in the last preceding subsection shall be carried out in accordance with plans and sections to be reasonably approved by the owner or owners thereof and if any difference shall arise between the Corporation and such owner or owners the same shall be referred to and determined by an arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration :
- (5) The Corporation shall not at any time under the powers of this Act in any way interfere with or obstruct the existing access to or from the said properties from or to Cannon Street and shall at all times during the construction of the works preserve access for vehicular traffic to the said properties :
- (6) Nothing herein contained shall be construed to enact or imply that the said or any part of the said properties can be severed from the remainder of them without material detriment thereto.

For protection of trustees of wills of Robert Pott and others and Ellen Willmott and their lessees and sub-tenants.

38. For the protection of Norbury Pott and William Hamilton Pott trustees of the will of Francis Pott deceased the freeholders of the lands shown on the deposited plans and described in the deposited books of reference and therein numbered 73 of Arthur Rokeby Price Henry Percivall Pott Arthur Henry Pott and Reginald Henry Pott trustees of the will of Henry Pott deceased the freeholders of the lands numbered 74 on the said plans and books of reference of Norbury Pott William Hamilton Pott and Robert Bertram Pott trustees of the will of Robert Pott deceased the freeholders of the lands numbered 75 on the said plans and books of reference of Norbury Pott the freeholder of the lands numbered 76 77 78 and 79 on the said plans and books of reference and of Ellen Ann Willmott and Rose Berkeley trustees of the will of Ellen

Willmott deceased lessees for an unexpired term of all the before mentioned lands and of Norbury Pott and the said trustees of the will of Robert Pott deceased the freeholders of the lands numbered 80 on the said plans and books of reference (all of which lands are in this section included in the expression "the said lands") or their heirs executors administrators or assigns (all of whom are in this section included in the expression "the owners") and of their respective lessees and sub-tenants the following provisions shall notwithstanding anything contained in this Act or shown on the deposited plans and unless otherwise agreed apply and have effect (that is to say):—

(1) The Corporation shall serve notices to treat upon the owners and their lessees and sub-tenants in respect of their respective interests in the said lands within nine months from the date of the passing of this Act and shall include in the notice or notices to treat to be served upon the owners and shall purchase and take of and from the owners the whole of the said lands :

(2) In settling any question of disputed purchase-money or compensation in respect of the said lands the rebuilding alteration and improvement in the years 1909 and 1910 of the premises numbered 78 and 79 on the deposited plans shall be regarded for the purposes of the section of this Act the marginal note whereof is "Compensation in case of recently altered buildings" as having been reasonably necessary and as not having been made or created with a view to obtaining or increasing compensation under this Act.

39. The following provisions for the protection of the City of London Electric Lighting Company Limited (in this section referred to as "the company") shall (unless otherwise agreed between the Corporation and the company) apply and have effect (that is to say):—

For protection of City of London Electric Lighting Company Limited.

(1) The Corporation shall not construct any part of Work No. 1 or any work in connexion therewith on the south side of the River Thames to the west of the western frontage line shown on the plan signed by Basil Mott on behalf of the Corporation and Frank

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Bailey on behalf of the company which plan is in this section referred to as "the said plan" Provided always that notwithstanding anything herein contained the Corporation may for the purpose of constructing and maintaining the south abutment to the bridge encroach upon the wharf of the company marked "F" on the said plan making reasonable compensation for any damage loss costs and expenses thereby caused to the company:

(2) Notwithstanding anything contained in this Act or the Acts incorporated therewith the Corporation shall not for the purposes of this Act enter upon take or use either temporarily or permanently any part of the company's property save and except as mentioned in this section Provided that the Corporation may for the purposes of and during the construction of Work No. 1 on the south side of the River Thames temporarily occupy such a space on the east and west sides of the proposed bridge and approach as may be reasonably necessary for the construction of the works causing thereby as little detriment and inconvenience as circumstances admit to the company and making reasonable compensation for any damage loss costs and expenses thereby caused to the company:

(3) The Corporation shall for the purposes of Work No. 1 acquire and the company shall transfer to the Corporation the whole of their interest (subject to any leases sub-leases or tenancies) in such of the lands coloured green on the said plan as are situate between the two frontage lines shown on the said plan In exchange therefor the Corporation shall—

(A) Acquire or cause to be vested in them under the powers of this Act and shall transfer or procure to be transferred to the company the fee simple in possession free from incumbrances and tenancies and all rights of way of or other rights which may exist in reference thereto—

(i) So much of the site of Pike Gardens White Hind Alley and Martagon Place as lies to the west of the western line of frontage shown on the said plan;

(ii) So much of the site of Moss Alley and Ladd's Court as is comprised in the plot shown on the said plan and thereon marked "A" and edged with red and so much of the portion of Skin Market Place as is coloured pink on the said plan ; A.D. 1911.

(iii) All those pieces or parcels of land shown on the said plan and thereon marked respectively "B" "C" "D" and "E" and coloured pink ;

(B) Grant to the company free access by means of arches to be constructed by the Corporation under Work No. 1 to and from the said pieces or parcels of land marked "A" "D" and "E" from and to the lands now vested or in pursuance of this section to be vested in the company on the west side of the said western frontage line together with the exclusive user of the said arches The company shall be entitled to use the said arches in such manner and for such purposes as they may deem fit but nothing in this Act contained shall be construed as rendering them less liable and responsible for all damage done by reason of such user than they would be at common law :

(4) The Corporation shall acquire and transfer to the company all such estates and interests in the property comprised in the above-mentioned Plot A on the said plan and thereon coloured green as may be necessary to vest in the company the fee simple in possession thereof free from incumbrances and leases other than the leases now held by the company and the company shall repay to the Corporation the cost of the acquisition of such estates and interests :

(5) The transfers by the Corporation of the land and properties mentioned in subsection (3) (A) and subsection (4) of this section shall take place so far as possible contemporaneously with the transfer by the company to the Corporation of their interest in the properties to be transferred to the Corporation under the provisions of subsection (3) or in any event not later than three months after such last-mentioned transfers :

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- (6) The lands on the west side of the said western line of frontage which are in pursuance of this section to be transferred to the company shall after such transfer be held by the company as part of the existing lands of the company which they immediately adjoin and may be utilised by the company for all and the same purposes for which the company under their existing Acts and Orders are authorised to use such existing lands to which they so adjoin to all intents and purposes as if they had always formed part of such existing lands :
- (7) The Corporation may for the purposes of Work No. 1 pull down the whole of that portion of Martagon Buildings which on the said plan is marked Block B or may pull down that portion of the said block which is coloured green on the said plan. If the Corporation shall elect to pull down the whole of the said block they shall before commencing the demolition thereof pay to the company the original cost to the company of the erection of the block and shall with all reasonable dispatch complete such demolition and clear the materials from the site. If the Corporation shall elect to pull down the portion only they shall forthwith after the transfer to them of such portion reinstate and restore and make good any damage to the remainder of the said block caused by the pulling down of the said portion to the reasonable satisfaction of the company :
- (8) The Corporation shall forthwith after the demolition by them of the portion of the buildings now used by the company as offices which is coloured green on the said plan erect a substantial wall with windows and entrances fronting to the said southern approach according to plans which shall be submitted to and reasonably approved by the company and shall also reinstate restore and make good the damage to the remainder of the said buildings caused by the demolition of the said portion to the reasonable satisfaction of the company and repay to the company the cost to the company of such additions to the said remainder

as may be required to provide accommodation equal : A.D. 1911.
in extent to that contained in the portion of the
buildings so taken : —

- (9) The company shall be entitled to erect buildings on and up to the lines of frontage shown on the said plan with access to and entrances from the said southern approach so far as the lands now vested in the company or to be transferred to the company in pursuance of this section adjoin such frontage lines. The elevation of all such buildings fronting on to the said southern approach shall be of reasonably ornamental character having regard to the character of such buildings and the purposes for which they may be intended :
- (10) The Corporation shall so construct the foundations of the portion of Work No. 1 on the south side of the River Thames that a free passage towards the river shall always be provided for the water contained in the subsoil thereunder :
- (11) The Corporation shall not in the execution of the works authorised by this Act or for any of the purposes thereof in any way obstruct damage alter the position of or otherwise interfere with the pipes works and other apparatus belonging to the company used or intended to be used by them for the purpose of obtaining dealing with or discharging condensing water or the flow of water thereto or therefrom and if during the execution of the works by this Act authorised or within a period of twelve months after the completion thereof there shall be any deposit of mud or other obstruction in the river in the vicinity of the said pipes works or apparatus which shall in any way be due to the Corporation's works the Corporation shall forthwith at their own expense remove such deposit or obstruction :
- (12) The Corporation shall during the execution of the works by this Act authorised preserve free from obstruction so far as reasonably possible the access to and utilisation of the Company's river frontage :

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- (13) Notwithstanding anything contained in the section of this Act of which the marginal note is "No main or pipes to be laid on the new bridges except with consent of Corporation" the Corporation shall give the company facilities or accommodation for the laying of electric lines as regards Work No. 1 similar to those now afforded to the company on Blackfriars Bridge but as regards Work No. 5 they shall give facilities or accommodation not less than those now afforded to the company on Southwark Bridge:
- (14) If having regard to the diversions of the company's electric lines and works which may be made by the Corporation the construction of a pipe subway shall become reasonably necessary the company shall have the user thereof free of charge:
- (15) Any difference which may arise under this section between the Corporation and the company shall unless otherwise agreed be settled by an engineer to be agreed upon between the Corporation and the company or failing agreement to be appointed on the application of either the Corporation or the company by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to such arbitration.

Indemnity in
respect of
certain
tithes.

40.—(1) After the occupier or occupiers of any of the lands houses and other buildings or any part of such lands houses and other buildings which may be entered upon taken altered or pulled down for the purposes of this Act and situate within the parishes of St. Gregory by St. Paul St. Augustine St. Faith under St. Paul St. Mary Magdalen Old Fish Street St. Mary Mounthaw St. Mary Somerset and St. Michael-le-Querne respectively shall have quitted or given up the possession thereof in pursuance of this Act unless and until except in cases where a part only is taken for the purposes of this Act and in such cases for ever thereafter new houses or other buildings shall be erected completed and occupied on the ground which shall be cleared for the purposes of this Act within the said parishes respectively of such annual rent or value that the tithes or sums of money in lieu of tithes and tithe rates for the time being actually payable for such lands new houses or other

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buildings shall be fully equal in the said parishes respectively to the tithes or sums of money in lieu of tithes and tithe rates payable for the lands houses or buildings or any part thereof possession of which shall for the time being have been quitted or given up by the occupiers thereof as aforesaid the tithes or sums of money in lieu of tithes and tithe rates payable in the said parishes respectively under the provisions of the Statutes 22 and 23 Charles II. c. 15 and 44 George III. c. 89 and the Acts amending the same and in the case of the parish of St. Gregory by St. Paul also under the provisions of the Statutes 37 Henry VIII. c. 12 the St. Paul's Cathedral London Minor Canonries Act 1875 and the London (City) Tithes Act 1864 and the Acts amending the same in respect of the lands houses and other buildings within the said parishes respectively the possession of which or any part of which shall be so quitted or given up as aforesaid (according to the last assessment thereof) and in cases where a part only is taken a fair proportion of such assessment or annual sums of money equal to the loss in tithes or sums of money payable in lieu of tithes and tithe rates which the churchwardens or churchwardens and tithe rate assessors or other authority in the said parishes respectively their successors or assigns and the inhabitants of the said parishes respectively may sustain by the want of occupiers or the rendering vacant of such lands houses or other buildings or any part thereof or by the taking down of such houses or other buildings or taking possession of any part thereof respectively (estimated as aforesaid) shall for ever thereafter be paid and payable by the Corporation to the said churchwardens or churchwardens and tithe rate assessors of the said parishes respectively or other persons entitled for the time being to receive the same their successors and assigns clear of all taxes and deductions on the 25th day of March the 24th day of June the 29th day of September and the 25th day of December by equal payments in each and every year the first payments thereof respectively to be made on such of the said days as shall first happen after the occupiers of any such lands houses or other buildings in the said parishes respectively shall have quitted the same as aforesaid and such sums of money to be paid and made good as aforesaid shall diminish in the said parishes respectively in proportion as the tithes or sums of money in lieu of tithes and tithe rates accrue and become payable for new houses or other buildings erected completed and occupied on ground which shall be so cleared

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A.D. 1911. — within the said parishes respectively as aforesaid and in case such sums of money so made payable by the Corporation shall not be paid within twenty-one days after the same respectively shall become due the same may be recovered in the same manner as other tithes or sums of money in lieu of tithes and tithe rates are now recoverable in respect of lands houses or other buildings in the said parishes respectively.

(2) It shall be lawful for the Corporation in lieu of the provisions contained in the last preceding subsection to purchase and for the owners for the time being respectively to sell the said tithes or sums of money in lieu of tithes in the said parishes respectively at such price and upon such terms as may be agreed upon between the Corporation and such owners respectively or in default of agreement as shall be settled by arbitration under the provisions of the Lands Clauses Consolidation Act 1845 or to redeem the said tithes or sums of money in lieu of tithes upon the terms and in the manner provided by the Tithe Act 1878.

For protec-
tion of
London
County
Council.

41. The following provisions shall unless otherwise agreed have effect for the protection of the London County Council (herein-after called "the council") (that is to say):—

(1)—(A) The Corporation shall not commence any of the works by this Act authorised which shall or may pass over under or by the side of or so as to interfere with the sewers of the council until they shall have given to the council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the principal office of the council with plans and sections thereof as herein-after defined and until the council shall have signified their approval of the same unless the council do not signify their approval disapproval or other directions within twenty-eight days after service of the said plans and sections as aforesaid and the Corporation shall comply with and conform to all reasonable orders directions and regulations of the council in the execution of the said works and shall provide by new altered or substituted works in such manner as the council shall reasonably require for the proper protection of and for preventing injury or impediment to the said sewers by reason of the intended works

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or any part thereof and shall save harmless the council against all expenses to be occasioned thereby and all such works shall be done by or under the direction superintendence and control of the council at the costs charges and expenses in all respects of the Corporation and all reasonable costs charges and expenses which the council may be put to by reason of such works of the Corporation whether in the execution of works the preparation or examination of plans or designs superintendence or otherwise shall be paid to the council by the Corporation on demand and when any new altered or substituted works as aforesaid or any works of defence connected therewith shall be completed by or at the costs charges or expenses of the Corporation under the provisions of this Act the same shall thereafter be as fully and completely under the direction jurisdiction and control of the council as any sewers or works now or hereafter may be ;

(B) As regards any work in respect of which the Corporation are under the provisions of this subsection required to submit plans and sections to the council the council may require the Corporation in constructing such works to make any reasonable deviation within the limits prescribed by this Act from the levels shown upon such sections for the purpose of avoiding injury or risk of injury to the sewers of the council and the Corporation shall in constructing such works deviate accordingly ;

(c) The plans to be submitted to the council for the purposes of this subsection shall be detailed plans drawings sections and specifications describing the exact position and manner in which and the levels at which the works are proposed to be constructed and shall accurately describe the position of all sewers of the council within the limits of deviation shown on the deposited plans (for which purpose the council shall allow the Corporation access to plans in their possession and to any sewers in order to enable the Corporation to obtain trustworthy information) and

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shall comprise detailed drawings of any alterations which the Corporation may propose to make in any such sewer;

(D) The council may require such modification to be made in the said plans drawings sections and specifications as may be reasonably necessary to secure the sewers and drainage system of London under the jurisdiction and control of the council against interference or risk of damage and to provide and secure a proper and convenient means of access to the said sewers;

(E) The Corporation shall be liable to make good all injury or damage caused by or resulting from any of their works or operations to any sewers vested in the council and the council shall from time to time have power to recover the amount thereof from the Corporation in any court of competent jurisdiction;

(F) The approval by the council of any plans or superintendence by the council of any work under the provisions of this subsection shall not exonerate the Corporation from any liability or affect any claim for damages under such subsection or otherwise:

(2) Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Corporation shall not execute or construct any works authorised by this Act or exercise any powers by this Act conferred upon them so as to affect or interfere with any subway for pipes cables or wires which may belong to the council or the means of access to any such subway without obtaining the previous consent of the council which consent shall not be unreasonably withheld:

(3)—(A) Twenty-eight days before commencing to execute or construct any works by this Act authorised which may involve interference with any tramway of the council the Corporation shall deliver to the council plans sections and specifications of such works as proposed to be executed or constructed;

(B) The council may in their discretion approve any such plans sections and specifications or require amendments therein or impose conditions in regard

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to the execution or construction of such works and shall give notice of their approval or proposed amendments or conditions as aforesaid within a period of twenty-one days from the date of the delivery to the council of the aforesaid plans sections and specifications ;

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(c) If the Corporation are dissatisfied with any proposed amendment or condition as aforesaid the matter in dispute shall be settled failing agreement by an arbitrator as in this section herein-after provided ;

(d) The said works shall be executed or constructed in accordance with plans sections specifications and conditions approved or imposed by the council or settled by arbitration as aforesaid and under the direction superintendence and control of the council Provided that at any time before the Corporation are entitled to commence such works the council may give notice to the Corporation stating that they desire to execute or construct the same and the council may to the reasonable satisfaction of the Corporation execute or construct such works subject to the like restrictions and conditions so far as they are applicable as the Corporation would themselves be subject to in executing or constructing such works and if the council give such notice the Corporation shall not be entitled to proceed themselves to execute or construct such works unless the council neglect or unreasonably delay to execute or construct the same ;

(e) If during and by the execution or construction of the said works (otherwise than by the council) any tramway of the council or any of the works or conveniences connected therewith shall be injured or damaged such injury or damage shall be forthwith made good by the Corporation at their own expense or in the event of their failing so to do the council may make good the same ;

(f) The Corporation in executing or constructing the said works shall not in any manner obstruct hinder or interfere with the free or uninterrupted and safe

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user of the tramways of the council or any traffic on such tramways and shall make full compensation to the council for any loss damage or penalty which they may incur by reason thereof;

(G) All reasonable expenses incurred by the council in respect of any of the matters in this subsection contained shall be borne and on demand paid by the Corporation including the expense of the employment by the council of a sufficient number of inspectors or watchmen to be appointed by them for watching the property of the council or any part thereof and the works and conveniences connected therewith and for preventing as far as may be all interference obstruction danger or accident arising from any of the operations of the Corporation or from acts or defaults of the contractors of the Corporation or of any person or persons in their employ or otherwise and the Corporation shall effectually indemnify and hold harmless the council from all claims and demands upon or against them by reason of the execution or construction of the said works:

(4)—(A) The bridges to be constructed by the Corporation in the metropolitan borough of Southwark to carry the works by this Act authorised over Sumner Street Park Street and Bankside shall have a clear headway throughout above the existing surface of the ground and a clear span throughout measured on the square not less than the headways and spans respectively shown on the deposited sections;

(B) The Corporation shall not commence the construction or alteration of any such bridges or works until they shall have given to the council twenty-one days' notice in writing of their intention to commence the same by leaving such notice at the offices of the council with plans elevations sections and other necessary particulars of the construction or alteration of the said bridges and works and until the council shall have signified their approval of the same unless the council fail to signify such approval or their disapproval or other directions within twenty-one days

after service of the said notice and delivery of the said plans elevations sections and other particulars as aforesaid and the Corporation shall comply with and conform to all reasonable directions and regulations of the council in the construction or alteration and subsequent maintenance of such bridges and works and shall save harmless the council against all and every expense to be occasioned thereby and all such works shall be done to the reasonable satisfaction of the council at the costs charges and expenses in all respects of the Corporation and all costs charges and expenses which the council may be put to by reason of the works of the Corporation whether in the execution of the works the preparation or examination of plans and designs superintendence or otherwise shall be paid to the council by the Corporation on demand: A.D. 1911.

- (5) Any dispute or difference which may arise between the council and the Corporation under the foregoing provisions of subsections (2) (3) and (4) of this section shall be settled by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of the Corporation and the council or either of them:
- (6) The provisions of the London Building Acts 1894 to 1909 and any Act amending the same shall apply to any new buildings or additions to or alterations of existing buildings erected or made under the powers of this Act:
- (7) The Corporation shall not commence to divert alter or partially stop up any street or road under the powers of this Act until they shall have given to the council twenty-eight days' notice in writing of their intention so to do by leaving such notice at the offices of the council with plans sections and other necessary particulars in regard to such diversion alteration or stopping up:
- (8) If the Corporation under the powers of this Act stop up any street or road they shall forthwith give notice thereof in writing to the council:

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- (9) Nothing in this Act shall be deemed to exempt the Corporation from any of the provisions of the Metropolis Management (Thames River Prevention of Floods) Amendment Act 1879.

For protec-
tion of
Metropolitan
Water
Board.

42. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the board on the one hand and the Corporation on the other hand have effect (that is to say):—

- (1) Notwithstanding the stopping up temporarily of any road street bridge footpath or way under the powers of this Act the board their engineers workmen and others in their employ shall at all times have full free and uninterrupted rights of access to all or any of the apparatus of the board situate in or under any such road street bridge footpath or way and shall be at liberty to do all such works in and upon such road street bridge footpath or way as may be necessary for inspecting repairing maintaining removing replacing or extending such apparatus:
- (2) Not less than one month before commencing any of the works by this Act authorised in any street or road in or under which any mains pipes apparatus hydrants syphons plugs or other works or apparatus (in this section referred to as "apparatus") of the board are situate the Corporation shall deliver to the board a plan section and description of such works describing the proposed manner of executing the same and showing the whole of the works proposed to be executed in connexion therewith:
- (3) The board may at any time within twenty-one days of the receipt of such plan section and description by notice in writing intimate to the Corporation their disapproval of the proposed manner of executing such works so far as they involve interference with the apparatus of the board or make any reasonable requirement with respect to such plan section or description Any difference between the board and the Corporation under this subsection shall be determined by arbitration as herein-after provided. Provided

that if the board shall not within the said period of A.D. 1911.
twenty-one days give any such notice in writing to
the Corporation as aforesaid they shall be deemed to
have approved the plan section and description as
submitted:

- (4) The Corporation shall not construct such works as aforesaid except in strict accordance with the said plan section and description as approved by the board or settled by arbitration:
- (5) The Corporation shall not raise sink or otherwise alter the position of any existing apparatus of the board or alter the level of any street or road in which any such apparatus is situate so as to leave over such apparatus a covering of less than three feet unless the Corporation shall in such case protect such apparatus from frost or injury by artificial covering to the reasonable satisfaction of the Board or more than five feet:
- (6) Notwithstanding any other provision of this Act the Corporation shall not remove raise sink or otherwise alter the position of any apparatus of the board or do anything which may impede the passage of water into or through any apparatus without the consent in writing of the board or in any manner other than the board shall approve or until such good and sufficient apparatus (herein-after referred to as "substituted apparatus") as the board may consider reasonably necessary for continuing the supply of water shall have been first provided laid down and made ready for use:
- (7) All works to be executed or provided under this section or under any other provisions of this Act affecting any apparatus of the board shall subject as herein-after provided be so executed or provided by and at the expense of the Corporation but to the reasonable satisfaction and under the superintendence of the engineer of the board:
- (8) Not less than fourteen days before commencing the construction of any such works as aforesaid the Corporation shall give to the board notice in writing

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of their intention to commence such construction and shall state in such notice the place and time at which they propose so to commence and if within seven days after the receipt of such notice the board shall give notice to the Corporation of their intention themselves to lay down any substituted apparatus or to execute any other works to or in connexion with any apparatus of the board as provided by this section it shall be lawful for the board instead of the Corporation to lay down such apparatus or execute such works and the cost reasonably incurred by them in so doing shall be repaid to the board by the Corporation :

- (9) The Corporation shall make good all damage done by them to any apparatus or other property of the board in the execution of the works by this Act authorised or in the provision of substituted apparatus or the execution of any other works required by this section and shall indemnify the board in respect of any actions claims or demands arising out of any interference with any such apparatus or property or with the private communication pipes of any person or persons supplied by the board :
- (10) If any interruption in the supply of water by the board shall without their written authority be in any way occasioned or if any substantial loss of water should be sustained by the board by reason of any act or omission of the Corporation or of any of their contractors agents workmen or servants or any person in the employ of them or any of them the Corporation shall forfeit and pay to the board for the use and benefit of the board by way of liquidated damages the sum of ten pounds for every hour during which such interruption shall continue :
- (11) The board may if they deem fit employ watchmen or inspectors to watch any works to be executed by the Corporation under this section or any other provision of this Act whereby any apparatus of the board will be interfered with or affected and the reasonable expenses thereof shall be borne by the Corporation and be paid by them upon demand to the board :

(12) The expense of all repairs and renewals of any apparatus of the board or any works in connexion therewith which may during the construction of the works or within twelve months after the completion thereof be rendered necessary by or in consequence of the acts or defaults of the Corporation their contractors agents workmen or servants or any person in the employ of them or any of them or rendered necessary by reason of the subsidence resulting from the works of the Corporation shall be borne by the Corporation and paid by them to the board: A.D. 1911.

(13) If by reason or in consequence of the stopping up under the powers of this Act of any street or road any apparatus of the board situate in or under the street or road so stopped up shall be rendered derelict or unnecessary the Corporation shall forthwith after such stopping up pay to the board such a sum as may be agreed between the board and the Corporation or as failing such agreement may be determined by arbitration as herein-after provided to be the value of—

(A) The apparatus situate in and under the street or road so stopped up; and

(B) Any apparatus of the board connected with the said apparatus and used exclusively for the purpose of the supply of water to any premises to which a supply is furnished by means of the apparatus in and under the street or road stopped up and all such apparatus shall upon such payment become the property of the Corporation;

In addition to the said payment the Corporation shall pay to the board their charges of and incidental to the cutting off of any such apparatus from any other apparatus of the board and of and incidental to any other works or things rendered necessary or expedient in consequence of any apparatus of the board being rendered derelict or unnecessary by the stopping up of any such street or road:

(14) If any difference shall arise between the board and the Corporation with respect to any matters under

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this section or concerning any of the said plans sections and descriptions the matter in difference shall be referred to and settled by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration :

- (15) The provisions of this section shall apply for the protection of the board in lieu of those contained in the section of this Act whereof the marginal note is "Alteration of position of water gas and other pipes."

For protec-
tion of Port
of London
Authority.

43. For the protection of the port authority the following provisions shall unless otherwise agreed have effect (that is to say) :—

- (1) The Corporation shall not simultaneously commence or proceed with the construction of the new bridges or of any temporary works in connexion therewith respectively but whichever of the new bridges shall be first commenced the same shall be entirely completed and any temporary works in connexion therewith which may have been erected or placed in the River Thames or on or under the banks bed or shores thereof shall be entirely removed before the other of the new bridges or any temporary works in connexion therewith shall be commenced erected or placed in the said river or on or under the banks bed or shores thereof and in case Work No. 1 is constructed before Work No. 5 by this Act authorised the said Work No. 1 shall be completed before the demolition of the existing Southwark Bridge is commenced :

- (2) The demolition of the existing bridge known as Southwark Bridge shall be carried out in such manner as the port authority approve and shall be completed and all temporary works erected or placed in the River Thames or on or under the banks bed or shores thereof in connexion with such demolition and all stone and other materials resulting from such

demolition shall be entirely removed from the said river or from the bed or shores thereof before Work No. 5 by this Act authorised or any works in connexion therewith respectively whether permanent or temporary shall be commenced: A.D. 1911.

- (3) The Corporation shall not execute or commence to execute any works by this Act authorised whether permanent or temporary in the River Thames or on or under the bed shores or banks thereof until the temporary staging at Cannon Street Railway Bridge and all works in connexion therewith have been entirely removed or until the expiration of one year from the passing of this Act whichever shall first happen and except in accordance with plans elevations and sections to be approved in writing by the port authority under the hand of their secretary and deposited at their office and all such works shall be executed and performed to the reasonable satisfaction of the engineer of the port authority and the traffic of the said river shall not be interfered with any more than may be absolutely necessary in the construction of the said works:
- (4) All temporary works erected or placed in the said river or on or under the banks bed or shores thereof under the authority of this Act shall be enclosed in floating booms which shall be placed in such positions as shall be defined upon plans to be submitted to and approved by the engineer to the port authority:
- (5)—(A) During the demolition of the existing Southwark Bridge the openings in the temporary works or between any temporary works and the buttresses of the existing bridge shall be of such widths and of such clear headways as may be previously approved in writing by the port authority under the hand of their secretary;
- (B) Throughout the period of the construction of the temporary and permanent works the openings in the temporary works in respect of each of the new bridges shall be of such clear widths between the piling and clear headways above Trinity high-water mark as shall be approved by the port authority;

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- (c) No pile driver barge or other craft shall at any time except with the consent of the port authority be allowed to lie in any part of the said openings;
 - (d) During the progress of the works for the demolition of the existing Southwark Bridge and the construction of works adjacent to the centre and intermediate openings of Works Nos. 1 and 5 and until such time as all temporary works have been removed a steam tug shall be provided by and at the expense of the Corporation which shall at all times during that period be in attendance at or near the site of the works in readiness to render assistance to vessels and barges navigating the river there;
 - (e) The owners and masters of vessels shall not be liable to make good any damage which may be caused to the temporary works except such as may arise from the wilful act or default of such owners or masters or their servants or agents:
- (6) The works by this Act authorised when commenced shall be proceeded with and completed as early as practicable and the Corporation shall upon completion of the permanent works and in any event within the period by this Act prescribed for such completion upon reasonable notice from the port authority so to do remove any temporary works and materials for temporary works which may have been placed in the River Thames or on the banks bed or shores thereof by the Corporation and on their failing to do so the port authority may remove the same charging the Corporation with the expense of so doing and the Corporation shall forthwith repay to the port authority all expenses so incurred:
- (7) The Corporation shall during the construction of the works by this Act authorised or any of them upon the bed banks or shores of the River Thames and on the new bridges when completed hang out and exhibit at or near to the said works every night from sunset to sunrise lights to be kept burning by and at the expense of the Corporation and proper and sufficient for the navigation and safe guidance of vessels and

the lights shall from time to time be altered by the Corporation in such manner and be of such kind and number and be so placed and used as the port authority by writing under the hand of their secretary or other authorised officer shall approve or direct and in case the Corporation fail so to exhibit and keep burning such lights they shall for every such offence forfeit to the port authority ten pounds: A.D. 1911.

- (8) Nothing in this Act contained shall authorise or empower the Corporation without the previous consent of the port authority under the hand of their secretary to embank encroach upon or interfere with any part of the River Thames or the bed or shores thereof except according to plans elevations and sections approved by the port authority and nothing in this Act shall be deemed to authorise the Corporation to construct any works so as to reduce the existing width of waterway of the river at Southwark Bridge without such consent as aforesaid:
- (9) The Corporation shall not (except so far as shall be necessary in the construction of the works by this Act authorised) take any gravel soil or other material from the bed or shore of the River Thames without the previous consent of the port authority under the hand of their secretary:
- (10) The foundations of the piers of the existing bridge known as Southwark Bridge shall be entirely removed down to a depth of thirty-five feet below the level of Trinity high water and the foundations of the piers of the new bridges and all or any works in connexion therewith shall be constructed and maintained at such a level as to allow the bed of the River Thames adjacent to the said bridges respectively to be dredged to a depth of thirty-five feet below the level of Trinity high water and notwithstanding anything contained in the Port of London Act 1908 the port authority shall not be liable for any damage not arising from negligence occasioned by or resulting from such dredging operations:
- (11) Notwithstanding anything contained in this Act or in the Acts incorporated herewith the compensation or

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consideration payable to the port authority in respect of the lands taken or easements acquired under the powers of this Act or in respect of permanent or temporary works placed in the River Thames or on or under the banks bed or shores thereof shall be assessed in accordance with the provisions of section 116 of the Thames Conservancy Act 1894 or any statutory provision in lieu thereof for the time being in force and the Corporation shall pay to the port authority a fair and reasonable consideration to be assessed in manner aforesaid for or in respect of any mains pipes cables wires or other work or apparatus which may with the consent of the Corporation be at any time carried across the said river by means of the new bridges other than such as may be placed or used without giving any consideration to the Corporation therefor or solely by the Corporation for the purposes of any of their undertakings or in pursuance of any of their powers or duties and other than tramway works and apparatus of the Corporation or the council Provided that the Corporation shall give notice in writing to the port authority of any such consent as aforesaid :

- (12) The Corporation shall remove so much of the steps causeway and piling at the upper side of the existing bridge known as Southwark Bridge on the north side of the River Thames as shall be in advance of the abutment line and before commencing the necessary works shall in some convenient and prominent position place and keep a notice board thereat indicating the situation of the then nearest landing place :
- (13) If in connexion with the construction of the Work No. 1 by this Act authorised the Corporation shall abolish the Trig Lane landing place the Corporation shall construct provide and maintain a landing place of equal convenience and in such position and in such manner as shall be approved by the port authority in writing under the hand of their secretary :
- (14) Notwithstanding anything contained in the section of this Act whereof the marginal note is "Power to

deviate" the Corporation shall not deviate from the lines or levels defined on the deposited plans and sections in such a manner as to lessen the headway or span of any of the openings of the new bridges as shown on the said plans and sections: A.D. 1911.

(15) The Corporation shall bear and on demand pay the cost of any alterations to any moorings which in the opinion of the port authority may be rendered necessary or desirable by reason of the construction of any of the works by this Act authorised:

(16) If any difference shall arise between the Corporation and the port authority as to any matter or thing affecting the plans or the mode of constructing the works or temporary works by this Act authorised or as to anything to be done or not to be done under this section such difference shall be referred to an arbitrator to be appointed on the application of either party by the Board of Trade and any arbitration hereunder shall except as to the appointment of arbitrator be subject to the provisions of the Arbitration Act 1889.

44. For the protection of the council of the metropolitan borough of Southwark (in this section called "the council") the following provisions shall unless otherwise agreed between the Corporation and the council apply and have effect (that is to say):—

For protec-
tion of
Southwark
Borough
Council.

(1) The Corporation shall not commence the construction of the new bridges or the works by this Act authorised so far as the same affect any streets or roads under the jurisdiction of the council until they shall have given to the council one month's previous notice in writing of their intention to commence the same by leaving such notice at the principal office of the council together with detailed plans sections and elevations thereof and until the council shall have signified their approval of the same (which approval shall not be unreasonably withheld) Provided that in the event of any objection being raised to the new bridges or works by this Act authorised or to such plans sections or

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elevations by the council which the Corporation are unable to agree to or remove the same shall be referred to arbitration as herein-after provided :

(2) Notwithstanding anything shown on the deposited plans and sections the existing bridge over Park Street in the metropolitan borough of Southwark shall be removed and Work No. 5 by this Act authorised shall be carried over such street by means of a girder bridge of a clear width between the abutments of not less than thirty-four feet measured on the square and with a clear headway throughout its whole width of not less than thirteen feet above the level of the existing roadway of such street at the time of the passing of this Act :

(3)—(A) Before the Corporation in the exercise of the powers of this Act commence to interfere with any sewer drain pipe or other property belonging to the council and before they stop up or commence to interfere with alter or divert any road street court passage highway bridge footpath railings steps pavements ways and rights of way under the jurisdiction of such council they shall give to the council one month's notice of their intention so to do accompanied by full and detailed plans sections and specifications of the works so to be executed and the proposed mode of executing the same and no such work shall be commenced until the council shall have signified their approval in writing of such plans sections and specifications and the council shall within twenty-one days from such notice signify their approval or disapproval in writing but if they disapprove of such plans sections and specifications or the mode of executing the work the reasonableness of such disapproval shall be referred from time to time to arbitration as herein-after provided and if the arbitrator shall decide that the disapproval is reasonable then he shall determine the mode of executing the works ;

(B) The works referred to in this subsection shall be executed to the reasonable satisfaction of the engineer to the council and if during the execution of such works any sewer drain pipe work or convenience of

the council shall be injured or damaged such injury or damage shall forthwith be made good by the Corporation at their own expense or in the event of their failing so to do the council may make good the same and recover the cost thereof against the Corporation : A.D. 1911.

- (4) Notwithstanding anything in this Act contained any paving metalling or road material excavated and all lamp standards pillars sewers drains and other property belonging to the council removed by the Corporation in the construction of the works by this Act authorised in or from any road street court passage highway bridge and footpath stopped up under the powers of this Act in the metropolitan borough of Southwark shall if so required by the council be delivered by the Corporation to the engineer of the council at some convenient point within the said metropolitan borough or to such person or persons he may appoint to receive the same :
- (5) Nothing in this Act contained or shown on the deposited plans shall authorise the Corporation to permanently stop up Bankside Sumner Street Park Street Great Guildford Street (south of Southwark Street) The Grove Southwark Street and Southwark Bridge Road in the metropolitan borough of Southwark but the Corporation may with the consent of the council (which shall not be unreasonably withheld) temporarily stop up any of such streets :
- (6) No alteration of the structure walls or arches of the new bridges or the approaches thereto within the metropolitan borough of Southwark shall be made by the Corporation until after one month's previous notice in writing of the intention to commence the said alterations together with detailed plans sections and elevations shall have first been given to the council and until the council shall have signified their approval of such alterations (which approval shall not be unreasonably withheld) Provided that in the event of any objection being raised to the proposed alterations or to the plans sections or elevations

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A.D. 1911.

thereof by the council which the Corporation are unable to agree to or remove the same shall be referred to arbitration as herein-after provided:

- (7) Any difference which may arise under this section between the council and the Corporation shall unless otherwise agreed be settled by an engineer failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of
Merchant
Taylors'
Company.

45. For the protection of the Master and Wardens of the Merchant Taylors of the Fraternity of Saint John Baptist in the city of London (in this section referred to as "the company") the following provisions shall unless otherwise agreed in writing between the company and the Corporation have effect (that is to say):—

- (1) Before commencing to construct any of the works by this Act authorised in or over or affecting Knightrider Street the Corporation shall purchase the estate and interest of the company in the premises in that street delineated on the deposited plans and thereon numbered 270 in the city of London:
- (2) Notwithstanding anything contained in this Act or shown on the deposited plans the Corporation shall not purchase the estate or interest of the company in any part of the premises delineated on the deposited plans and thereon respectively numbered 28 29 30 31 and 32 in the city of London but the Corporation may purchase and the company shall sell to them the estate and interest of the company in so much of the vaults beneath Queen Street Place as may be required by the Corporation for the purpose of constructing the northern approach to the new bridge Work No. 5 by this Act authorised:
- (3) Notwithstanding anything contained in this Act the Corporation shall not in constructing the said northern approach deviate upwards or downwards from the levels thereof shown on the deposited sections to a greater extent than one foot:

- (4) Except with the previous consent in writing of the company no permanent works erections or obstructions shall be constructed erected made placed kept or allowed in or over that area of the River Thames or of the banks bed soil or foreshore which is adjacent to the river front of Three Cranes Wharf and is situated within the red lines on the plan marked "A" signed by the Right Honourable the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred of which plan one copy has been deposited in the Parliament Office of the House of Lords and one copy has been deposited in the Private Bill Office of the House of Commons: A.D. 1911.
- (5) The spring of the northernmost arch of the new bridge Work No. 5 by this Act authorised shall start from a point to be previously agreed upon between the company and the Corporation or failing such agreement to be determined by arbitration as hereinafter provided:
- (6) The Corporation shall at their own cost execute to the reasonable satisfaction of the surveyor of the company all such works of reconstruction of the respective entrances to the said premises delineated on the deposited plans and thereon respectively numbered 28 29 30 31 and 32 in the city of London and of the said vaults as the company and their lessees may reasonably consider necessary in consequence of the alteration by the Corporation under the powers of this Act of the level of Queen Street Place:
- (7) Any difference (other than differences to which the Lands Clauses Acts apply) which may arise under this section shall be determined by an arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

46. For the protection of Trevor Addams Williams or other the owner or owners for the time being of the wharves and ware-houses in the city of London known as the Red Lion Wharf

For protec-
 tion of
 Trevor
 Addams
 Williams.

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A.D. 1911. (all of whom are in this section referred to as and included in the expression "the owner") and of the said Trevor Addams Williams his successors or assigns lessees of the wharf and warehouses in the said city known as the Three Cranes Wharf (all of whom are in this section referred to as and included in the expression "the lessee") the following provisions shall unless otherwise agreed in writing between the owner or the lessee as the case may be on the one hand and the Corporation on the other hand have effect (that is to say):—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans or sections the Corporation shall not purchase the estate or interest of the lessee in any greater part of the arch or vault beneath Queen Street Place now held with and as part of Three Cranes Wharf aforesaid than so much thereof as may be required by the Corporation for the purpose of constructing the northern approach to the new bridge Work No. 5 by this Act authorised:
- (2) Notwithstanding anything contained in this Act the Corporation shall not in constructing the said northern approach deviate upwards or downwards from the levels thereof shown on the deposited sections to a greater extent than one foot:
- (3) The Corporation shall at their own cost execute to the reasonable satisfaction of the surveyor of the lessee all such works of reconstruction of the said arch or vault as the lessee may reasonably consider necessary in consequence of the alteration by the Corporation under the powers of this Act of the level of Queen Street Place:
- (4) Except with the previous consent in writing of the owner and the lessee (which consent in regard to pile driving for the purpose of the construction on the west and south sides of the area herein-after mentioned of the temporary staging or other structure referred to in subsection (6) of this section shall not be unreasonably withheld) no permanent or temporary works erections things conveniences or obstructions shall be constructed erected made placed kept or allowed nor any pile driver barge or other craft suffered to lie in or over that area of the River Thames or of the banks

bed soil or foreshore thereof which is adjacent to the river front of Red Lion Wharf or Three Cranes Wharf and is situated within the red lines on the plan marked "A" signed by the Right Honourable the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred of which plan one copy has been deposited in the Parliament Office of the House of Lords and one copy has been deposited in the Private Bill Office of the House of Commons :

A.D. 1911.
—

- (5) The spring of the northernmost arch of the new bridge Work No. 5 by this Act authorised shall start from a point to be previously agreed upon between the lessee and the Corporation or failing such agreement to be determined by arbitration as herein-after provided :
- (6) Every staging or other structure which the Corporation shall erect at the western side of the area herein-before referred to shall be constructed at such a level and of such form and in such manner as shall be previously agreed upon between the owner and the lessee on the one hand and the Corporation on the other hand or as failing such agreement shall be determined by arbitration as herein-after provided with a view to giving as far as possible spaces underneath for three barges to lie as nearly as may be in line with and to the immediate east of the present northern abutment of Southwark Bridge :
- (7) The provisions of the section of this Act of which the marginal note is "Provisions of Railways Clauses Consolidation Act 1845 as to temporary occupation of lands incorporated" shall not apply with respect to Red Lion Wharf or except with the consent of the lessee (which consent shall not be unreasonably withheld) with respect to any part of Three Cranes Wharf other than the arch or vault beneath Queen Street Place now held by him with and as part of Three Cranes Wharf :
- (8) Any difference (other than differences to which the Lands Clauses Acts apply) which may arise under this section shall be determined by an arbitrator to be appointed

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failing agreement by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of Vintners Company and their tenants.

47. For the protection of the Worshipful Company of Vintners (in this section referred to as "the Vintners Company") and their lessees and tenants the following provisions shall unless otherwise agreed in writing between the Corporation and the Vintners Company and their lessees and tenants apply and have effect with respect to the construction of the Work No. 5 by this Act authorised and the footbridge connected therewith:—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans the Corporation shall not enter upon take use or interfere with the lands or any part of the lands numbered on the deposited plans 25 and 25A in the city of London without having previously obtained the consent in writing of the Vintners Company and their lessees and tenants and the said lands numbered 25 and 25A on the deposited plans shall not be deemed to be within the limits of deviation shown on the deposited plans:
- (2) The Corporation shall not in the execution of the works by this Act authorised remove underpin or interfere with the buildings walls footings foundations or other works erected or placed by the Vintners Company and their lessees and tenants in under on or adjoining Queen Street Place or Upper Thames Street:
- (3) The Corporation shall not in the execution of the works by this Act authorised alter the level of Queen Street Place except in the manner and to the extent shown by the line of the altered level of the surface of the road shown upon the deposited sections but the Corporation may deviate from the said altered level to any extent not exceeding 12 inches upwards or 12 inches downwards and the Corporation shall in the execution of the said works provide and maintain all such temporary carriageways and footways as may be necessary for providing convenient access to the houses and buildings on the lands abutting on the west side of Queen Street Place and the south side of Upper Thames Street:

- (4) The Corporation shall not execute any works for varying the level of Queen Street Place where the same adjoins the lands on the west side of Queen Street Place unless and until detailed drawings and specifications of the alterations necessary to be made in the houses and buildings on the said lands for the purpose of adapting them to the proposed new level of Queen Street Place shall have been agreed in writing between the Corporation and the Vintners Company and their lessees and tenants or in default of agreement shall be determined by arbitration and all such alterations of the said houses and buildings shall at the option of the Vintners Company and their lessees and tenants be made by the Corporation at their own expense or by the Vintners Company and their lessees and tenants and if made by the Vintners Company and their lessees and tenants the reasonable expense of such alterations shall be paid by the Corporation to the Vintners Company and their lessees and tenants on demand and the reasonable expenses of the Vintners Company and their lessees and tenants in or about the approval of the said drawings and specifications shall be repaid by the Corporation on demand :
- (5) The Corporation shall not permanently stop up or alter the level of Upper Thames Street and shall not permanently interfere with the surface thereof :
- (6) Any difference arising under the provisions of this section between the Corporation and the Vintners Company and their lessees and tenants shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts as incorporated with and amended by this Act with respect to the settlement of questions of disputed compensation by arbitration :
- (7) The provisions of the section of this Act whereof the marginal note is "Compensation in cases of recently altered buildings" shall not apply to any of the lands houses buildings or erections situate on the west side of Queen Street Place.

A.D. 1911.

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Act, 1911.

A.D. 1911.

For protec-
tion of
Hambro
Wharf.

48. For the protection of the Worshipful Company of Vintners (in this section referred to as "the Vintners Company") and their lessees and tenants and Henry Tate and Sons Limited and of Hambro Wharf and the road formerly known as Anchor Alley leading from Hambro Wharf to Upper Thames Street the following provisions shall apply and have effect (that is to say) :—

- (1) The Corporation shall not without the consent in writing of the Vintners Company and their lessees and tenants and Henry Tate and Sons Limited enter upon take use or interfere with any part of the lands numbered 25 and 25A on the deposited plans and shall not exercise upon Hambro Wharf or the said road or upon any of the lands or buildings of the Vintners Company and their lessees and tenants and Henry Tate and Sons Limited any of the powers of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands :
- (2) The Corporation shall not in the exercise of any of the powers of this Act stop up or alter or interfere with the said road :
- (3) The Corporation shall not interfere with the approach or departure of vessels and lighters to or from the Hambro Wharf or the loading or unloading of goods thereat except in so far as may be reasonably necessary so to do and shall during the construction and use of any temporary works at their own expense provide and employ all such works tugs lighters appliances and servants as may be reasonably necessary to enable Henry Tate and Sons Limited to carry on their business at Hambro Wharf as freely and fully as they might have done but for the passing of this Act and if by reason of the operations of the Corporation it shall in the opinion of Henry Tate and Sons Limited become impracticable to carry on the business as aforesaid Henry Tate and Sons Limited shall be entitled to take on lease or agreement any wharf or warehouse of a similar class and description to Hambro Wharf to use for the purposes of their business and the Corporation shall recoup Henry Tate

and Sons Limited the rent costs charges and expenses of the same and all outgoings of whatever nature incurred by them in connexion therewith: A.D. 1911.

- (4) Before the Corporation in the exercise of the powers of this Act commence any works within one hundred feet of the Hambro Wharf they shall give to the Vintners Company and their lessees and tenants and Henry Tate and Sons Limited not less than one month's notice in writing of their intention so to do accompanied by full and detailed plans sections and specifications of the works so to be executed and the proposed mode of executing the same and no such work shall be commenced until the Vintners Company and their lessees and tenants and Henry Tate and Sons Limited shall have signified their approval in writing of such plans sections and specifications and the Vintners Company and their lessees and tenants and Henry Tate and Sons Limited shall within twenty-one days from such notice signify their approval or disapproval in writing but if they disapprove of such plans sections and specifications or the mode of executing the work the reasonableness of such disapproval shall be referred from time to time to the determination of an arbitrator as hereafter provided and if he shall decide that the disapproval is reasonable then he shall determine the mode of executing the works and the reasonable expenses of the Vintners Company and their lessees and tenants and Henry Tate and Sons Limited in or about the approval of the said plans sections and specifications shall be repaid by the Corporation on demand:
- (5) The Corporation shall not be entitled to make any claim against Henry Tate and Sons Limited for any loss damage or injury that may be occasioned by Henry Tate and Sons Limited to the works or property of the Corporation unless such damage be caused wilfully or by negligence:
- (6) Any difference which may arise under the provisions of this section between the Corporation and the Vintners Company and their lessees and tenants and Henry Tate and Sons Limited shall be from time to time referred to and determined by an arbitrator to be

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agreed upon or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers.

For protection of John Taylor and Sons and Cape Copper Company Limited.

49. For protection of John Taylor and Sons and the Cape Copper Company Limited the occupiers of the premises known as 5 6 7 8 and 9 Queen Street Place and the arches or vaults 7 8 9 and 10 Three Cranes Lane Upper Thames Street in the parish of the city of London (in this section respectively referred to as "the occupiers" and "the premises") the following provisions shall notwithstanding anything in this Act contained and unless otherwise agreed have effect:—

- (1) Except as herein-after provided the Corporation shall not in constructing or maintaining the works by this Act authorised interfere with the premises or do or allow to be done anything to prevent the occupiers from carrying on their respective businesses in the premises in the same manner as before the passing of this Act:
- (2) Should the pavement on the west side of Nos. 5 6 7 8 and 9 of Queen Street Place be permanently lowered then the steps leading to the said premises shall be altered and extended and the wall forming the boundary of the areas of the said premises on the west shall together with the iron railings attached to such wall be lowered at the expense of the Corporation in such manner and to such an extent not being lower than the permanent level of the pavement after it is lowered as the said John Taylor and Sons and/or the Cape Copper Company Limited respectively may reasonably require:
- (3) If any difference shall arise between the occupiers and the Corporation under this section such difference shall be referred to and determined by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers and subject thereto the Arbitration Act 1889 shall apply to any such arbitration.

Period for compulsory purchase of lands.

50. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act.

51. If the new bridges be not completed within ten years from the passing of this Act then on the expiration of that period the powers of the Corporation under this Act for the construction thereof shall cease except so far as the same shall have been completed.

A.D. 1911.
Period for
completion of
new bridges.

52. The Corporation may sell or dispose of the stone and other materials of the existing Southwark Bridge and all building and other materials of any houses buildings or structures acquired by them under the powers of this Act which may not be required for the works by this Act authorised and also all materials in under or upon any road street or other place altered by them for the purposes of this Act and any materials obtained in the alteration of or interference with any drain or sewer which are vested in the Corporation under the powers of this Act.

Power to sell
materials.

53. Subject to the provisions of this Act the Corporation may if they think it expedient so to do sell exchange and dispose of all or any lands acquired by them respectively under the powers of this Act and not required for the works by this Act authorised for such price and on such terms and conditions as they shall respectively think reasonable and subject to such stipulations as to title as they shall respectively think fit and may execute and do any deed act or thing proper for effectuating any such sale or exchange.

Power to sell
or exchange
lands.

54. The Corporation subject to the provisions of the Lands Clauses Acts may when and as they shall think fit so to do demise and lease any lands acquired by them under this Act and not required for the purposes of this Act or such parts of such lands as they may think expedient at such rent and on such terms as they shall think fit and may execute and do any deed act or thing proper for effectuating any such demise or lease.

Power to
lease surplus
lands.

55. If the Corporation at any time desire to use for the purposes of this Act any land tenement or hereditament or any part thereof already belonging to the mayor and commonalty and citizens of the city of London in their own right or held by them upon trust the fair value of the same (including fair compensation for severance) shall be ascertained and certified in writing by a surveyor to be appointed by the lord mayor of the city of London by writing under his hand and the amount so certified shall be paid to the mayor and commonalty and citizens of the city of

Provisions as
to use of
Corporation
property.

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A.D. 1911. London out of the moneys to be borrowed under this Act or the surplus rents and profits of the Bridge House Estates or if the land tenement or hereditament or part thereof of which the value shall have been certified as aforesaid was held by the mayor and commonalty and citizens of the city of London upon any trust the amount so certified shall be paid into the Bank of England and dealt with as if the same were purchase money or compensation coming to parties having limited interests within the meaning of the Lands Clauses Acts And upon payment of such amount into the bank as aforesaid such land tenement or hereditament or part thereof shall vest in the Corporation for the purposes of this Act freed from all trusts claims and demands whatsoever.

Corporation
empowered
to make bye-
laws.

56. Subject to the provisions of this Act the Corporation with the approval of the Secretary of State may make such byelaws as they think proper for the regulation and management of the traffic on the new bridges and on so much of the approaches and other works authorised by this Act and shown on the map referred to in the section of this Act of which the marginal note is "New bridges to be under jurisdiction of city justices and police" to be within the jurisdiction of such justices as the Corporation shall therein specifically define as places to which such byelaws shall be applicable and may from time to time alter vary or repeal such byelaws or any of them as they shall think fit.

Penalties
may be
imposed by
byelaws.

57. The Corporation may by any such byelaw impose and inflict such reasonable penalties not exceeding five pounds for the breach or non-performance of such byelaw as they shall think fit Provided always that such byelaws shall be so framed as to allow the justices before whom any penalty imposed thereby may be sought to be recovered to order the whole or a part only of such penalty to be paid.

Proof of
byelaws.

58. A copy of any byelaw made under the powers of this Act authenticated by the signature of the town clerk of the city shall for all purposes and to all intents be *prima facie* evidence of such byelaw and of the due making and allowance thereof.

Recovery of
penalties.

59. Any penalty under this Act or under any byelaws or regulations made under this Act may be recovered in manner provided by the Summary Jurisdiction Acts.

60. The Corporation may alter and reconstruct the steps on the east side of London Bridge leading from the Borough High Street to the foreshore on the south side of the River Thames and from Adelaide Place to the foreshore on the north side of the said river and may stop up and extinguish all rights of way over and appropriate the site and soil of such portions thereof as may not be required for the purposes of the said steps as altered and reconstructed. Provided that the Corporation shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

A.D. 1911.
Power to alter and reconstruct steps at London Bridge.

61. The new bridges shall be vested in the Corporation and shall not be deemed to be county bridges and shall be maintained repaired lighted and policed by the Corporation out of the funds of the Bridge House Estates and the Corporation may also undertake the maintenance repair lighting and policing wholly or in part of the approaches or of some of the approaches or of any part or parts thereof respectively but when and so soon as the roadways stairs and footways forming the approaches to the new bridges shall have been completed by the Corporation as aforesaid the liability or expense thereafter of lighting cleansing and keeping in repair the said roadways stairs and footways forming such approaches as aforesaid so far as the same are situate outside the city shall (except so far as the same may be undertaken by the Corporation) be borne by the council of the metropolitan borough of Southwark. Provided that the Corporation shall not undertake under the provisions of this section the maintenance repair lighting or policing of so much of the approaches as may be beyond the jurisdiction of the justices of the city of London as shown on the map referred to in the section of this Act of which the marginal note is "New bridges to be under jurisdiction of city justices and police."

As to repairs maintenance lighting and policing of new bridges and approaches.

62. The Corporation shall not under the powers conferred by this Act divert alter remove or otherwise interfere with any pipe tube wire or apparatus laid down or placed for telegraphic or other purposes and belonging to or used by the Postmaster-General except under and subject to the provisions of the Telegraph Act 1878.

For protection of Postmaster-General.

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Power to
borrow
money on
credit of
Bridge
House
Estates.

63. The mayor and commonalty and citizens of the city of London may borrow and reborrow for the purposes of this Act any sum or sums of money not exceeding in the whole two million two hundred and fifty thousand pounds and such further sums as may be necessary and as shall be applied to pay any compensation payable under this Act on the credit of the Bridge House Estates and of the estates and revenues of the mayor and commonalty and citizens of the city of London subject however to any charges to which the same are subject previous to the time of the borrowing or reborrowing of such sum or sums respectively.

Application
of surplus
rents and
profits of
Bridge
House
Estates and
of moneys
received in
pursuance
of Act.

64. The Corporation may apply the surplus rents and profits of the Bridge House Estates (after providing for the necessary payments required to be made thereout in respect of existing liabilities) in payment of expenses incurred by the Corporation in executing the works authorised by or otherwise in pursuance of this Act in payment of interest on money borrowed under this Act and in discharge of principal moneys borrowed under this Act Any capital moneys received by the Corporation in pursuance of this Act shall be applied by them in discharge of principal moneys borrowed under this Act.

Money may
be borrowed
in substitu-
tion of sums
paid off.

65. Whenever and as often as it may be considered expedient or become necessary to call in or pay off any portion of the moneys raised by the mayor and commonalty and citizens of the city of London under the authority of this Act the mayor and commonalty and citizens of the city of London may from time to time in manner aforesaid borrow other moneys required for the purpose of paying off the moneys which it may have become expedient or necessary to call in or pay off Provided that the total amount borrowed under the authority of this Act and remaining unpaid shall not at any one and the same time exceed in the whole the amount by this Act authorised to be borrowed.

Form of
bond.

66. All moneys borrowed under the authority of this Act may be secured by bonds under the common seal of the mayor and commonalty and citizens of the city of London in such form as they may from time to time deem expedient and shall be assignable by indorsement.

Persons pay-
ing money to
Corporation

67. Any person paying to the mayor and commonalty and citizens of the city of London or to any person appointed by

them to receive the same any sum of money by virtue of this Act shall not be answerable or accountable for the non-application or misapplication thereof.

A.D. 1911.

not to be liable for mis-application.

68. The mayor and commonalty and citizens of the city of London (in this section referred to as "the Corporation") if they think fit in lieu of borrowing on the security of bonds as herein-before authorised may borrow the moneys which they are by this Act authorised to borrow or any part thereof under the powers and subject to the provisions of the Local Loans Act 1875 by means of a loan or loans to be raised by the issue of debentures debenture stock or annuity certificates or partly in one way and partly in another and the Corporation shall for the purposes of the said Act and the exercise of the powers of borrowing money by this Act conferred be deemed to be a local authority within the meaning of the same term as defined by the Local Loans Act 1875.

Power to borrow under Local Loans Act 1875.

Any moneys borrowed in manner by this section authorised for any of the purposes of this Act shall be a charge upon and shall be paid out of the estates and revenues on the credit of which the Corporation are authorised by this Act to raise moneys and such estates and revenues shall be the local rate within the meaning and for the purposes of the Local Loans Act 1875.

Every such loan shall be discharged within the period of sixty years after the raising of the same and such discharge or any part thereof shall be effected by means of a sinking fund if the Corporation shall so think fit And if the Corporation at any time think fit to form any such sinking fund all sums paid into the same shall as soon as may be be invested by the Corporation in any manner in which trustees are by law for the time being authorised to invest trust moneys.

69. The mayor and commonalty and citizens of the city of London may at any time and from time to time purchase any bond debenture debenture stock annuity certificate or other security granted or issued by them under the authority of this Act and for the time being in force from the holder thereof and may cancel the same when so purchased and as from the date of such cancellation such bond debenture debenture stock annuity certificate or other security shall become and be void and of no effect.

Power to Corporation to purchase and cancel securities under this Act.

70. The chamberlain of the city shall at all times provide and keep one or more book or books in which all moneys received by virtue of this Act shall from time to time as the

Chamberlain to keep accounts of receipts and

[**Oh. cxx.**] *Corporation of London (Bridges)* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. same are paid be entered and set down in a separate account
disburse- and wherein all the moneys paid and disbursed out of the moneys
ments. so received shall from time to time be entered and set down and
such entry shall express the time when the occasion for which
and the names of the persons to whom the same shall be paid.

Chamberlain 71. The chamberlain of the city shall yearly lay before
to lay an ac- each House of Parliament a true account of the receipts and
count before application of all moneys which may be received by virtue of
Parliament. this Act.

Council may 72. The council may expend on capital account for the
raise money purposes of this Act such money as may be necessary for the
on capital purposes of any agreement entered into by them under the
account. powers of this Act and in order to raise and provide the money
required for those purposes the council may from time to time
create and issue consolidated stock or resort to the consolidated
loans fund or otherwise raise money in accordance in each
case with the provisions of the Acts for the time being in force
regulating the raising of money for capital purposes by the
council.

Power to 73. The mayor aldermen and commons of the city of
appoint a London in common council assembled (in this section referred
committee to as "the Corporation") may from time to time appoint a
to carry committee or committees to manage and transact all or any of
Act into the matters or purposes which the Corporation are by this Act
execution. empowered to do execute or perform and any such committee
shall have such or so many of the powers and authorities and
discretion by this Act given to and reposed in the Corporation
as the Corporation shall think fit or proper to delegate to any
such committee.

Disqualifi- 74. An alderman of the city if and as long as he is a
cation as member of the committee appointed to manage the execution
justice of of this Act shall be disqualified from acting as a justice in and
aldermen for the city for any purpose of this Act but he shall not be
members of disqualified unless he is a member of that committee.
committee.

Acts to be 75. Where by this Act or by any Act extended or applied
done by two to or incorporated with this Act any act matter or thing is
justices may required directed or authorised to be done by two justices such
be done by act matter or thing may be done by any justice as defined by
any justice this Act sitting alone in the court or other public place in which
under this he usually exercises jurisdiction as such justice.
Act.

76. Nothing in this Act contained shall prejudice alter or affect the right of the mayor and commonalty and citizens of the city of London or the Corporation to exercise the powers conferred upon them by any previous Acts relating to bridges in relation to the borrowing of moneys in so far as the said powers have not been exercised or to borrow such part of the moneys thereby authorised to be borrowed as may not have been raised thereunder.

A.D. 1911.

Saving un-
exercised
borrowing
powers.

77.—(1) From and after the passing of this Act the new bridges and the approaches thereto respectively as shown by a red colour on a map of which five copies have been signed by the Right Honourable the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred shall for all purposes of or relative to the jurisdiction of the justices of the city of London and for all purposes of or relative to the police and police jurisdiction of or relative to criminal law be deemed and taken to be within the city.

New bridges
to be under
jurisdiction
of city jus-
tices and
police.

(2) This section shall not confer any power to levy any rate in or in respect of the said bridges or approaches which could not before the passing of this Act be levied.

(3) One copy of the said map has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords and the other copies of the said map shall be deposited within one month after the passing of this Act at the offices of the town clerk of the Corporation the clerk of the London County Council and the town clerk of the metropolitan borough of Southwark respectively.

78. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Crown
rights.

79. All the costs charges and expenses of and incidental to the applying for obtaining and passing of this Act and of carrying the same into execution shall be paid by the Corporation out of the rents and profits of or the moneys raised on the credit of the Bridge House Estates.

Expenses of
Act.

[Ch. cxx.] *Corporation of London (Bridges)* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. The SCHEDULE referred to in the foregoing Act.

DESCRIPTION OF PROPERTIES OF WHICH PORTIONS ONLY ARE
 REQUIRED TO BE TAKEN BY THE CORPORATION.

Parish.	Numbers on Deposited Plans.
WORK No. 1.	
St. Saviour Southwark - -	5 6 12 14 66 67 68 69 82 83 103 191 196 199 200 201 202 204 205.
City of London - -	231 232 233 234 235 236 237 238 239 298.
WORK No. 5.	
St. Saviour Southwark - -	2 6 to 12 17 18.

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